

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
EMMANUEL HENRY, AS A PARENT AND NATURAL
GUARDIAN OF E.H., A MINOR UNDER THE AGE 18,
INDIVIDUALLY

Plaintiffs,

**SUMMONS WITH VERIFIED
COMPLAINT**

-against-

Index No.:
Date Purchased:

THE CITY OF NEW YORK AND THE NEW
YORK CITY POLICE DEPT., POLICE OFFICERS
CAPTAIN ZHENG TAX ID 937790, SGT, STEVEN
SCHILLINGS SHEILD # 1598, OFFICERS DAVIS
TAX ID 957518 AND JANE DOE, (A FICTITIOUS
NAME BECAUSE HER NAME IS PRESENTLY
UNKOWN) ALL OF THE 67TH PRECINCT AND
ALL SUED AS POLICE OFFICERS AND IN THEIR
INDIVIDUAL CAPACITY,

Defendants.

-----X

To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service, (30) days after the service is complete, if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 9TH day of March, 2020



EMDIN & RUSSELL, LLP.
Royce Russell, Esq., as Counsel
Attorneys for Plaintiffs
C/O Law Office of Jeffrey L. Emdin
330 West 38th Street, Suite 302
New York, New York 10018
Tel: (718) 785-8890

Defendants address:

City of New York
c/o Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

Police Officer Captain Zheng
Tax ID #937790
c/o 67th Precinct
2820 Snyder Avenue
Brooklyn, New York, 11226

Police Officer Sgt. Steven Schilling
Shield No. # 1598
c/o 67th Precinct
2820 Snyder Avenue
Brooklyn, New York, 11226

Police Officer Davis
Tax ID #957518
c/o 67th Precinct
2820 Snyder Avenue
Brooklyn, New York, 11226737 Melrose Avenue

Police Officer Jane Doe
c/o 67th Precinct
2820 Snyder Avenue
Brooklyn, New York, 11226

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Defendants.

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The plaintiff, E.H. by his father Emmanuel Henry and by their attorneys, Emdin & Russell, LLP., complaining of the Defendants respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the Defendant, the City of New York, hereinafter referred to as "City", was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief that at all times hereinafter mentioned, the Defendant "City" its agents, servants and employees operated, maintained and controlled the Police Department of the City of New York hereinafter referred to as "NYPD" including all the police officers thereof.
3. That at all times hereinafter mentioned, specifically on the 16th day of March, 2019, at approximately 12:00 noon, at the location of 1084 Lenox Road, Brooklyn, New York 11212 within

Kings County, the State of New York, hereafter referenced to as the “location” the plaintiff was lawfully present and had not committed a crime.

4. Upon information and belief, that at all times hereinafter mentioned, specifically on the 16th day of March, 2019 at approximately 12:00 noon, Police Officer Captain Zheng 937790, Sgt. Steven Schilling Shield #1598, Officers Davis Tax ID # 957518 and Doe (a fictitious name because her name is presently unknown), hereinafter collectively referred to as “the officers” were screened, interviewed, hired by the “City/NYPD”, trained by the “City/NYPD”, was retained by the “City/NYPD”, and was investigated, monitored, supervised and/or disciplined by the “City/NYPD”.

5. That the plaintiff filed and served a notice of claim on or about June 6, 2019.

6. The City acknowledged receipt of the notice of claim and held a 50(h) hearing of E.H. and Emmanuel Henry on October 11, 2019.

7. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendant, City of New York and the said defendant has neglected or refused to make any adjustment or payment thereof.

8. That this action is commenced within one year and 90 days after the cause of action arose.

9. E.H. is a United States Citizen.

10. Emmanuel Henry is a United States Citizen and is referred hereinafter as “Henry”.

11. E.H. at all relevant times hereunder resides at 977 East 45th Street Brooklyn, New York 11213.

12. Upon information and belief at all times hereinafter mentioned, and specifically on the 16th day of March, 2016, “Zheng”, “Schilling”, “Davis” and “Doe”, at approximately 12:00 noon, were

present at or near the vicinity of 11084 Lenox Road, Brooklyn, New York were acting within the scope of their employment and under the direction of the “City”, and “NYPD” as their agents, servants and/or employee(s).

13. That “the officers”, individually and collectively, at all relevant times hereunder, acted as a police officer, and was required to follow the rules and regulations as contained in the New York City Patrol Guidelines.

14. That on March 16, 2019 the plaintiff was lawfully at the abovementioned location participating in a PAL basketball game.

15. During said game an opposing player was trash talking to E.H., for which said player was ejected.

16. Shortly after the above the game was suspended for which E.H. was advised by Davis to remain in the gym to allow the opposing team to exit the building. E.H. complied and waited with his cousin.

17. While waiting E.H. called an Uber to take him home.

18. E.H. and cousin was told they could leave the gym and they did, as they exited the building and walked toward their Uber.

19. While walking to his Uber E.H. observed Davis with the opposing team. At the same time a player from the opposing team said something to E.H. for which he responded “Why are you still talking”.

20. Immediately after making this statement, E.H. was grabbed by Davis around his neck, with one hand, and held by his shirt/chest area with the other hand.

21. Davis then slammed E.H. against a brick wall and threw him onto the ground as he choked

E.H. and dragged him into the location, while yelling "Get the Fuck inside".

22. Davis then straddled E.H. as he laid on his back, Davis then repeatedly struck E.H. in the chest as he continue to choke E.H.

23. Doe upon seeing this enlisted the help of a referee to remove Davis from E.H.

24. As E.H. laid on the floor of the location helpless he was picked up and detained in the auditorium.

25. E.H. was illegally detained in said auditorium as he was told to calm down by Doe. E.H. responded "How can I calm down when Davis just beat me up".

26. E.H. then called his mother and shortly after the called he was allowed to leave.

27. Defendants did not provide E.H. with medical treatment.

28. E.H. and cousin arrived home by way of the Uber he called and relayed what occurred to his father "Henry".

29. Upon Henry hearing of what occurred, Henry and E.H and his cousin went back to the location.

30. Henry at the location inquired of Doe as to what happen and she could not articulate what happened as to why E.H. was battered and assaulted. Doe then began to lie for which E.H.'s cousin stated Doe was lying as to what occurred.

31. Henry requested a supervisor as Doe and Henry refused to give their badges and walked away.

32. Defendants called for ambulance once Zheng and Schilling arrived. E.H. was treated for bruising and a scar on his neck as well as a headache. E.H. was transported to the hospital.

33. Prior to being place into an ambulance and as all the Defendants were leaving the location

Henry a pink paper was left on a table for Henry.

34. Said pink paper was a Summons for Disorderly Conduct.

35. E.H. did not commit any crime.

36. E.H. suffered and continues to suffer from anxiety, sleeplessness and hyper vigilance as a result of the Defendants' misconduct.

37. At no time did any named, known or unowned officer intervened in the illegal detention, seizure, false imprisonment, battery, assault, abuse of power/authority and excessive force on behalf of E.H.

38. E.H. was compelled to appear in Court for which the case was dismissed.

39. E.H. sustained physical and emotional injury as a result of the defendants conduct.

40. Henry suffers from anxiety as a result of this incident.

41. That this action falls within one of the exceptions of CPLR 1601.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF
AGAINST ALL NAMED DEFENDANTS FOR FALSE IMPRISONMENT**

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "41" with the same force and effect as if more fully and at length set forth herein.

43. That beginning on or about the 16th day of March, 2016, at the approximate hours of 12:00 noon at or near the vicinity of 1084 Lenox Road, Brooklyn, New York, the Defendants, and their agents, servants and/or employees intentionally imprisoned the plaintiff, without any just cause or grounds therefore and held them against his will under full force of arms.

44. That said imprisonment was caused by the Defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and

without any reasonable grounds or any cause to believe that the plaintiff was guilty of any crimes, or that the Defendants had just cause to imprison/detain the plaintiff.

45. The plaintiff was wholly innocent of any crime and did not contribute in any way or manner to their arrest or imprisonment by the Defendants, their agents, servants and/or employees and was forced to submit to the aforesaid arrest and imprisonment/detention entirely against his will.

46. That the Defendants, their agents, servants and/or employees, as set forth above, intended to confine the E.H.; in that E.H. was conscious of his confinement; E.H. did not consent to the confinement; and the confinement was not otherwise privileged.

47. That by reason of the aforesaid false imprisonment and detention of E.H., he was subjected to great indignity, humiliation, pain and great distress of mind and body and the said plaintiff have been otherwise damaged.

48. That by reason of the aforesaid, E.H./the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF AGAINST ALL NAMED DEFENDANTS
FOR ASSAULT AND BATTERY:

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "48" with the same force and effect as if fully set forth herein.

50. Upon information and belief, on or about the 16th day of March, 2019, commencing at the approximate hour of 12:00 noon at or near the vicinity of 1084 Lenox Road, Brooklyn New York, Defendants "officers", while acting in the scope of their employment as police officers and as agents for the Defendant the "City", without just cause or provocation and with great force and violence, choked, pushed, struck and threw E.H. to the ground, while illegally detaining the

plaintiff.

51. Defendants refused to provide medical treatment E.H. and E.H. received medical treatment only when his father demanded said treatment.

52. That the Defendants, their agents, servants and/or employees, including but not limited to “officers” were acting as an agent on behalf of the defendant “City”, within the scope of his employment, intentionally, willfully, and maliciously battered and assaulted the plaintiffs, in that they had the real or apparent ability to cause imminent harmful or offensive bodily contact with the plaintiff and intentionally did an act which threatened to and did cause such contact to the plaintiff. That said acts caused apprehension of such offensive contact to the plaintiff, and “officers” in a hostile and/ or offensive manner touched and beat the plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such batter, assault in and about his body and limbs.

53. That “officers” used excessive and/or unreasonable force to effectuate the plaintiff’s detention but who had not committed any crime.

54. That said acts occurred within the scope of the police officers employment with the “City”

55. That by reason of the aforesaid intentional battery and assault, the plaintiff suffered and still continue to suffer from physical and psychological injuries and were rendered sick, sore, and lame, and among other things suffered conscious pain and suffering, and that he was otherwise damaged.

56. That by reason of the aforesaid battery and assault, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST DEFENDANTS FOR MALICIOUS PROSECUTION**

57. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "56" with the same force and effect as if more fully and at length set forth herein.

58. The Defendants filled out false police reports, and issued a DAT/SUMMONS to the plaintiff for the purpose of prosecuting him for the charge that they knew that he did not commit.

59. The Defendants took such actions, knowingly and with a malice disregard for the truth, and did so with the intent to cover up the illegal detention, battery and assault of the plaintiff and the injuries that he sustained at the hands of the police.

60. The plaintiff was at all times innocent of any crime charged.

61. That due to the malicious prosecution the plaintiff was caused to be inconvenience and E.H. had to take time from school. As a result of this incident E.H. grades suffered.

62. That by reason of the aforesaid malicious prosecution, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR VIOLATION
OF PERSONAL CONSTITUTIONAL RIGHTS UNDER
42 U.S.C. 1983 AGAINST THE CITY OF NEW YORK**

63. That plaintiff repeats, reiterates and realleges each and every allegation Contained in paragraphs marked "1" through "62" with the same force and effect as if more fully and at length set forth herein.

64. That upon information and belief, on or about the 16th day of March, 2019, at or about approximately 12:00 noon at or near the vicinity of 1084 Lenox Road Brooklyn, New York, Defendants, "officers" were present as part of their regular course of business with the City of

New York.

65. That plaintiff was lawfully present at the above vicinity.

66. That the “officers” without probable cause or reasonable suspicion detained, imprisoned battered and assaulted the plaintiff.

67. That the plaintiff was seized, choked, pushed, struck, thrown to the ground, and repeatedly punched by Davis.

68. E.H. was battered and assaulted by the “officers”, acting as an agent, servant and/or employee for Defendant, City, without provocation, to seize and imprisoned the plaintiff.

69. Defendants then refused to provide medical treatment to E.H.

70. The officers denied the plaintiff prompt and necessary medical attention.

71. That all acts committed by “the officers” and other agents, servants, and/or employees and/or agents of the Defendant “City”, were committed within the scope of their employment and under color of law, and while said officer was acting under the custom, policy, rules and/or regulations of the City.

72. That said acts constituted an illegal seizure of the plaintiff and deprived the plaintiff of his rights and liberties as set forth in the Constitutions of the United States and of the State of New York and under 42 U.S.C. Section 1983 and/or 1986.

73. That said acts constituted cruel and unusual punishment.

74. That said acts violated the plaintiff’s rights to due process of law.

75. That the defendant City caused or created a policy and/or custom, and acted with deliberate indifference to patterns and /or police practices which included illegal seizures, false arrests, condoning or tolerating excessive or arbitrary use of force; failing to follow police

guidelines; failing to monitor or discipline police misconduct; failing to gather evidence when allegations of police misconduct are involved; condoning a code of silence within the police department regarding misconduct; failing to properly supervise, train, investigate or discipline officers; engaging in a pattern of falsely accusing individuals who were victims of excessive use of force with having committed a crime to cover up illegal police conduct; and engaging in police cover-up, any and for all of the above contributing to plaintiffs' false arrest, and prosecution, and injuries.

76. The City negligently trained, retained, retrained, supervised, disciplined, monitored and/or investigated the defendant officers, when, upon information and belief they had knowledge of their violent propensities and prior bad acts.

77. The Defendants' actions on March 16, 2019 were performed under the color of the policies, statute, ordinances, rules and regulations of the City of New York.

78. That the plaintiff did not commit any illegal act, either before or at the time they were falsely arrested and imprisoned, battered, assaulted, and deprived him of his constitutional rights as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

79. That by reason of the aforesaid, the plaintiff was injured in mind and body, and he was damaged.

80. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A FIFTH CAUSE OF ACTION ALLEGING VIOLATION OF
CONSTITUTIONAL RIGHTS UNDER 42 U.S.C. SECTION 1983, BY "ZHENG,
SCHILLING, DAVIS AND DOE" EACH IN HIS/HER INDIVIDUAL CAPACITY AND
AS AN AGENT OF THE CITY OF NEW YORK**

81. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "80" with the same force and effect as if more fully and at length set forth herein.

82. That at all times hereinafter mentioned, "officers" were employed by the Defendant The City of New York and/or The New York City Police Department and each was acting under the color of his official capacity and their acts and actions were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

83. That at all times hereinafter mentioned, the "officers" acted pursuant to orders and directives from Defendant, The City of New York.

84. That during all times hereinafter mentioned, "officers" acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department and that they were acting under the color and pretense of law, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the Fourth, Eighth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and/or Section 1986.

85. That the unlawful and illegal conduct of the Defendant officers deprived the plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United

States and of the State of New York:

- a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure, and the right not to be subjected to excessive force, under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
- b) The right of plaintiff not to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.
- c) The right to be free of cruel and unusual punishment
- d) The right not to be discriminated against based on race, age or creed.
- e) The right to prompt and necessary medical attention.
- f) The right to due process of law

86. That by reason of the aforesaid violations, use of force, use of arbitrary, excessive and sadistic force, seizure of plaintiff's person, their false arrest and false imprisonment, battery and assault, the officers conspiracy to violate the plaintiff's due process of law and the malicious prosecution of the plaintiff, Defendant "officers", violated plaintiff's rights and privileges as provided to him in the Constitution of the United States of America, and provided to them in the Constitution of the State of New York, and laws thereto, the Defendant officers violated 42 U.S.C. §1983.

87. That as a direct proximate result of the Defendants' actions the plaintiff, was subjected to great indignities and humiliation, and pain and distress of mind and body and was humiliated and defamed thereby.

88. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffer and upon information and belief, will continue to suffer great physical and mental pain, and they

have expended and incurred divers sums of money in an effort to cure themselves of said injuries, to extricate themselves from the indignities and humiliation fostered upon them by the actions of the "officers", individually and collectively.

89. That by reason of the aforesaid, the plaintiff, has been damaged in a sum exceeding the jurisdiction of the lower courts, and seek compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Section 1988, and such other relief as to the court may seem just and proper.

WHEREFORE, the plaintiff demands judgment against the Defendants on the First through Fifth cause of action in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages and such other relief as to the court seems just and proper on the first through fifth causes of action, and such further relief as to the court seems just and proper.

DATED: New York, New York
March 9, 2020



/s/ ROYCE RUSSELL, ESQ.
Emdin & Russell, LLP.
Attorneys for Plaintiff
Office and P.O. Address
C/O Law Office of Jeffrey Emdin,
330 West 38th Street
New York, New York 10018
(718) 785-8890

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am an attorney associated with the law firm of Emdin, & Russell, LLP., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
March 9, 2020



ROYCE RUSSELL, ESQ.
By: Royce Russell, Esq.

EMMANUEL HENRY by his Father and Natural Guardian and Parent EMAL HENRY,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, CAPTAIN ZHENG, TAX ID# 937790, SGT. STEVEN SCHILLING SHIELD# 1598, POLICE OFFICER DAVIS, TAX ID# 957518 AND JANE DOE (Fictitious name because her name is presently Unknown), ALL OF THE 67TH PCT, ALL SUED AS POLICE OFFICERS AND IN THEIR INDIVIDUAL CAPACITY

Defendants.

SUMMONS AND VERIFIED COMPLAINT

EMDIN AND RUSSELL, LLP.

Attorneys for PLAINTIFF

C/O LAW OFFICES OF EMDIN & RUSSELL, LLP

330 West 38th Street Suite 302

New York, NY 10018

(718) 785-8890

To: The Office of the Corporation Counsel

New York, NY. 10007

100 Church Street

New York, NY 10007

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: March 9, 2020

Signature

/s/ ROYCE RUSSELL, ESQ.

Royce Russell, Esq.

PLEASE TAKE NOTICE

[] NOTICE OF ENTRY

that the within is a (certified) true copy of a
duly entered in the office of the
clerk of the within named court on

[] NOTICE OF SETTLEMENT

that a of which the within is a
true copy will be presented for settlement to the HON. one
of the judges of the, on